

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL
COMPLAINANT’S PROPOSED VERIFIED SECOND AMENDED COMPLAINT**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on July 28, 2023, *see* Dkt. 20 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer an unredacted copy of its proposed Verified Second Amended Complaint (“2AC”) and file on the public docket of this case a redacted copy of the 2AC.¹

PROCEDURAL HISTORY

Complainant filed its Verified Complaint in this case with the Secretary of the Commission on April 21, 2023. The Secretary of the Commission served a Notice of Filing of Complaint and Assignment on April 27, 2023. Respondents Orient Overseas Container Line Limited and OOCL

¹ On November 15, 2024, Complainant’s counsel contacted Respondents’ counsel as to Respondents’ position as to the instant motion. *See* Declaration of J. Lee Hill ¶ 4, dated November 15, 2024, and filed contemporaneously herewith. In response to Complainant counsel’s inquiry, Respondents’ counsel did not indicate that Respondents oppose the instant motion. *Id.* ¶ 6.

(Europe) Limited (together, “Respondents” and, collectively with Complainant, the “Parties”) filed their Verified Answer on May 22, 2023. On July 28, 2023, the Presiding Officer issued an Order entering the Protective Order to govern discovery in this case.

Complainant filed its Motion for Permission to File the Proposed Verified First Amended Complaint (the “1AC Motion”) in this case with the Secretary of the Commission on July 8, 2024. Concurrently with the 1AC Motion, Complainant filed its Motion to File Under Seal Complainant’s Proposed Verified First Amended Complaint (the “1AC Sealing Motion”).

The Secretary of the Commission served an Order issued by the presiding Administrative Law Judge in this action granting Complainant’s 1AC Motion on August 23, 2024 (the “1AC Motion Order”). Pursuant to the 1AC Motion Order, Complainant’s Verified First Amended Complaint (“1AC”) was filed that same day. Respondents filed their Verified Answer to the 1AC on September 6, 2024.

REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

Complainant’s proposed 2AC filed herewith contains and refers to material (the “Subject Material”) designated by Respondents as Confidential or Attorneys Eyes Only (“AEO”) pursuant to the Protective Order. This motion to file an unredacted copy of the proposed 2AC with the Presiding Officer under seal (and a redacted copy on the public docket of this case) is thus necessitated by the requirements of the Protective Order, which mandates such filings for any documents containing confidential information as designated by the Parties.

The Subject Material is the same material submitted in the context of Complainant’s 1AC Sealing Motion and previously approved to be filed under seal pursuant to the Presiding Officer’s 1AC Motion Order.

CONCLUSION

Consistent with the requirements of the Protective Order in this case, Complainant seeks by the instant motion leave to file its proposed 2AC under seal.

Dated: November 15, 2024

Respectfully submitted,

HUTH REYNOLDS LLP

A handwritten signature in black ink, appearing to read "Lee Hill", is written over a horizontal line.

Matthew J. Reynolds

(646) 872-9353

reynolds@huthreynolds.com

Karl C. Huth

(212) 731-9333

huth@huthreynolds.com

Gregory A. Crapanzano II

(917) 575-3440

gcrapanzano@huthreynolds.com

J. Lee Hill

(405) 826-3226

lhill@huthreynolds.com

Jie Shi

(615) 739-4956

jshi@huthreynolds.com

41 Cannon Court

Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc., formerly known as Bed Bath &
Beyond Inc.*

Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

Lauren B. Wilgus
Matthew Thomas
Keith B. Letourneau
BLANK ROME LLP
1271 Avenue of the Americas
New York, NY 10020
(212) 885-5348
Lauren.Wilgus@BlankRome.com
Matthew.Thomas@BlankRome.com
Keith.Letourneau@BlankRome.com

Rebecca A. Fenneman
Eric C. Jeffrey
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th St., NW, Suite 700
Washington, DC 20005
RFenneman@JeffreyFenneman.com
EJeffrey@JeffreyFenneman.com

Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: November 15, 2024

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J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., f/k/a Bed Bath & Beyond Inc.*